

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Monday, July 13, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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20CV-02472	Ramiro Ramos vs Javier Zambrano et al.
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Motion to Strike Cross Complaint

The motion to strike the cross-complaint filed by Cross-Complainant All Seasons Mechanical, Inc., is GRANTED WITH LEAVE TO AMEND.

Code of Civil Procedure section 436, subdivision (b) allows the court to strike any pleading not drawn or filed in conformity with the laws of this state. (Code. Civ. Proc. § 436, subd. (b).)

Other than small claims, a corporation is unable to represent itself in court and must be represented by an attorney. Here, All Seasons Mechanical, Inc., has been without representation since its attorney of record was relieved as counsel on March 8, 2024, which became effective on April 15, 2024.

As All Seasons Mechanical, Inc., is no longer represented by counsel, the cross-complaint is no longer maintained in conformity with the laws of this state.

Accordingly, the motion to strike is granted. As this may be cured by All Seasons Mechanical, Inc. obtaining counsel, the motion is granted with leave to amend.

Cross-Complainant All Seasons Mechanical, Inc. is to obtain counsel and file proof of representation within thirty (30) days of this court's order.

Failure to obtain counsel and provide proof of representation within thirty (30) days of this court's order may result in the cross-complaint being stricken without leave to amend.

22CV-01155

Estate of Devonea Graham, et al. vs County of Merced, et al.

Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required. On July 6, 2026, counsel informed the Court of their intent to file a dismissal the same day after the court hearing. No dismissal has been filed. Appear to show cause why the matter should not be dismissed pursuant to California Rules of Court, rule 3.1385 and Code of Civil Procedure section 664.6

23CV-00838

Maria Medina vs Moises Zaragoza, et al.

Motion to Bifurcate Issues at Trial

The motion to bifurcate the punitive damages issues from the liability and compensatory damages phase of trial is GRANTED.

For the first phase, the trier of fact will first decide liability, actual damages, and whether Plaintiff has proven malice, oppression, or fraud. Only if the trier of fact finds Plaintiff has proven malice, oppression, or fraud, will the trial advance to the second phase regarding the amount of punitive damages.

Defendant is ordered to file a proposed order consistent with this court's order within five (5) days.

24CV-06583

Alma Quintero Sanchez vs David Rodriguez

Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required. Appear to address the status of the conditional settlement for which notice was filed February 13, 2026, with an anticipated dismissal date of May 12, 2026, and show cause why the Court should not dismiss the matter, retaining jurisdiction for enforcement purposes pursuant to Code of Civil Procedure section 664.6. If there are no appearances, the matter may be dismissed by the Court pursuant to the settlement under California Rules of Court, rule 3.1385, as more than 45 days have passed since the date the settlement agreement conditions were to be completed.
